



Pensions (Increase) Act 1971

1971 CHAPTER 56

An Act to replace the Pensions (Increase) Acts 1920 to 1969 and make further provision for increases and supplements to be paid on certain pensions and related benefits.
[27th July 1971]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

GENERAL PROVISIONS

1.—(1) Subject to the provisions of this Act, the annual rate ^{Present} of an official pension may, if any qualifying condition is satisfied, ^{increases.} be increased by the pension authority in respect of any period beginning on or after 1st September 1971, as follows:—

- (a) a pension beginning before the year 1969 may be increased by the amount necessary to bring the rate up to the 1969 standard, that is to say, to the rate arrived at by applying to the basic rate of pension the multiplier given in Schedule 1 for the year in which the pension began, and by a further 18 per cent. of the rate as so increased;
- (b) a pension beginning on or before 1st April 1969 but not earlier than that year may be increased by 18 per cent. of the basic rate;
- (c) a pension beginning in the six months following 1st April 1969 may be increased by 16 per cent. of the basic rate;
- (d) a pension beginning in the six months following 1st October 1969 may be increased by 14 per cent. of the basic rate;

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- (e) a pension beginning in the six months following 1st April 1970 may be increased by 10 per cent. of the basic rate ;
- (f) a pension beginning in the six months following 1st October 1970 may be increased by 6 per cent. of the basic rate.

(2) In the case of a pension beginning before the year 1969 the increase authorised by subsection (1)(a) above shall take the place of those authorised by the Pensions (Increase) Acts 1920 to 1969, but in the cases provided for by section 6 below shall be of the larger amount there specified by reference to increases that might have been made under those Acts.

Future
reviews and
increases.

2.—(1) Subject to the provisions of this section, the Minister for the Civil Service, as soon as may be after 31st March in the year 1973 and every second year thereafter, shall review the rates of official pensions against any rise there may have been in the cost of living during the review period, that is to say, the two years ending with that date ; and if it is found that in the review period the cost of living has risen by four per cent. or more, then the Minister shall by order provide that the annual rate of an official pension may, if a qualifying condition is satisfied, be increased in accordance with the order in respect of any period beginning on or after 1st September next following the review period.

(2) Subject to subsection (3) below, the increases to be provided for by an order under this section shall be as follows:—

- (a) for pensions beginning on or before the first day of the review period the increase shall be in the proportion (to the nearest one-tenth of one per cent.) in which the cost of living has risen during the review period ; and
- (b) for pensions beginning in the half year following that day or in any of the succeeding half years up to that ending with the day after the end of the review period, the increases shall be in the proportion (to the nearest one-tenth of one per cent.) in which the cost of living is found to have risen between the basis period for that half year and the end of the review period, if the cost of living in the basis period is taken as the mean of the monthly figures.

For purposes of paragraph (b) above, the basis period for any half year is the six months ending with the first month of the half year or, if the cost of living is lower in the half year than in those six months, is the half year itself.

(3) Where the rise referred to in subsection (2)(b) above is less for any half year than four per cent., there shall only be an increase for pensions beginning in that half year if there

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is one for pensions beginning in a later half year, and the increase (if there is one) shall be four per cent. ; but where this subsection prevents there being an increase for pensions beginning in any half year, then the order made in respect of the next review period shall for those pensions authorise, instead of an increase calculated in accordance with subsection (2)(a) above, such increase as would result if that prevented by this subsection had been made and were followed by one calculated in accordance with subsection (2)(a) by reference to the rate as so increased.

(4) Where on any review under this section (including a review made by virtue of this subsection) it is not found that the cost of living has risen by four per cent. or more in the review period, then there shall be a further review in the next year for the same review period extended by twelve months ; and if on a review made by virtue of this subsection it is found that the cost of living has risen by four per cent. or more in the (extended) review period, the provisions of this section shall apply accordingly, and later reviews shall be made at intervals of two years thereafter until this subsection again applies.

(5) On any review under this section the cost of living shall be assessed by such means as the Minister thinks appropriate.

(6) The increases in the rate of a pension that may be provided for by an order under this section are to be calculated, except as otherwise stated in this Part of this Act, by reference to the basic rate of the pension as authorised to be increased by section 1 above or by any earlier order under this section ; but an order under this section may be made so as to incorporate the effect, in whole or in part, of section 1 above or of any earlier order under this section, and may repeal or amend any provision of that section or of any such order accordingly.

(7) An order under this section shall be made by statutory instrument, which shall be laid before Parliament after it is made.

3.—(1) A pension shall not be increased under this Part of Qualifying this Act unless one of the conditions laid down by this section conditions. (in this Act referred to as “qualifying conditions”) is satisfied.

(2) A pension payable in respect of the pensioner's own services shall not be increased unless the pensioner—

(a) has attained the age of sixty years ; or

(b) has retired on account of physical or mental infirmity from the office or employment in respect of which, or on retirement from which, the pension is payable ; or

(c) is a woman who has at least one dependant ;

or the pension authority are satisfied that the pensioner is disabled by physical or mental infirmity.

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(3) A pension payable in respect of the services of any person other than the pensioner, not being the pensioner's deceased husband, shall not be increased unless the pensioner—

- (a) has attained the age of sixty years ; or
- (b) has not attained the age of sixteen years ; or
- (c) is receiving full-time instruction at an educational establishment ; or
- (d) is undergoing training for a trade, profession or vocation in such circumstances that he is required to devote the whole of his time to that training for a period of not less than two years ; or
- (e) is a woman who has at least one dependant ;

or the pension authority are satisfied that the pensioner is disabled by physical or mental infirmity.

(4) A pension payable in respect of the services of the pensioner's deceased husband shall not be increased unless the pensioner—

- (a) has attained the age of forty years ; or
- (b) has at least one dependant ;

or the pension authority are satisfied that the pensioner is disabled by physical or mental infirmity.

(5) For the purposes of this section, a pensioner shall be deemed to be disabled by physical or mental infirmity if he is permanently incapacitated by such infirmity from engaging in any regular full-time employment.

(6) Subject to subsection (7) below, "dependant" in this section means, in relation to a pensioner, a person who the pension authority are satisfied is wholly or mainly supported by the pensioner and who either has not attained the age of sixteen years or is receiving full-time instruction at an educational establishment or is undergoing training as mentioned in subsection (3)(d) above.

(7) Where a pension payable to a woman at 31st August 1971 is then payable at a rate increased under the Pensions (Increase) Acts 1920 to 1969 by reason only that she is, and has since 1st April 1956 been, wholly or mainly supporting another person, being either—

- (a) her, or her deceased husband's, father, mother, brother, sister, child, uncle or aunt ; or
- (b) the child of any such person as is mentioned in paragraph (a) above ; or
- (c) her step-father or step-mother ; or

(d) a person undergoing training for any trade, profession or vocation ;

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then so long as the pension authority are satisfied that she continues wholly or mainly to support that person and, if this subsection applies only by virtue of paragraph (d), that person continues to undergo training for a trade, profession or vocation, that person shall be deemed for purposes of this section to be the woman's dependant.

In this subsection "child" includes a step-child and an illegitimate child, and includes also a child adopted in pursuance of an order made by any court in the United Kingdom or adopted in accordance with the law of the place where the adopter was domiciled at the time of the adoption.

(8) The Minister for the Civil Service may by order made by statutory instrument provide for reducing (or further reducing) the age sixty in subsection (2)(a) or (3)(a) above, or in both, to any age not less than fifty-five, and this section shall have effect subject to any such order for the time being in force ; but a statutory instrument under this subsection shall be subject to annulment in pursuance of a resolution of either House of Parliament.

4.—(1) Where a person has been in receipt of an official pension in respect of any service, and in consequence of any further service rendered by him the pension falls to be recalculated as to its basic rate and to be treated for purposes of this Act as beginning at a later date, then the rate of the pension as recalculated, with any increase under this Part of this Act apart from this section, may be further increased up to the rate, if it is higher, at which the pension would have been payable with any such increase if—

Effect of re-employment.

(a) the further service had not been rendered ; and

(b) where the pension is one of those specified in subsection (4) below and the recalculation is on the basis there mentioned, the length of the previous service had been increased by the length of the further service.

(2) Where a person has terminated his service in circumstances such that he is or may become eligible for an official pension, but has not been in receipt of that pension before rendering further service in consequence of which the pension falls to be recalculated or to be calculated on a different basis, subsection (1) above shall apply as it would apply if he had been in receipt of the pension before rendering the further service.

(3) Where the basic rate of a derivative pension, not being a substituted pension, falls to be calculated by reference to that of

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a principal pension which is authorised to be increased under subsection (1) or (2) above (or which would have been, if the further service had been terminated by retirement), the derivative pension may be increased in the way in which subsection (1) above authorises (or would have authorised) the principal pension to be increased ; and for this purpose the reference in subsection (1)(b) to the pension is to be taken as a reference to the principal pension, not the derivative pension.

(4) Subsection (1)(b) above shall apply to pensions specified in paragraphs 4, 18 to 21 and 50 of Schedule 2 to this Act, and also to those specified in paragraphs 22(b) and 23 if computed under the Superannuation Acts 1834 to 1949, but shall apply only in a case where the recalculation falls to be made by reference—

- (a) to the aggregate of the further service and the previous service ; and
- (b) to emoluments attributed to a period immediately preceding the termination of the further service not lower than the emoluments by reference to which the pension was to be calculated before the further service.

Scope of Act,
and general
powers to
extend and
adapt
increases.

5.—(1) For purposes of this Act “ official pension ” means, subject to subsection (2) below, any of the pensions specified in Schedule 2 ; and in the case of a pension specified in Part II of the Schedule it shall be the duty of a pension authority, except as otherwise provided by section 9(7) below, to increase the pension in accordance with this Act.

(2) The Minister for the Civil Service may by regulations provide that this Act shall have effect in relation to any pensions not specified in Schedule 2 as if they were specified in such Part of that Schedule as may be directed by the regulations ; and regulations under this subsection—

- (a) may include such incidental, consequential and supplemental provisions as appear to the Minister to be expedient ; and
- (b) may in particular make provision for securing that the cost of increasing any pension is borne by the appropriate authority.

(3) The Minister for the Civil Service, if satisfied in the case of any official pension that it is proper so to do, may by regulations direct (either generally or in relation to a particular review under section 2 above) that the provisions of this Act shall apply in relation to that pension subject to such modifications, adaptations and exceptions as may be specified in the regulations.

The power conferred by this subsection on the Minister for the Civil Service may be exercised also, with his consent, by the Lord Chancellor or the Secretary of State.

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(4) Any regulations under this section may provide for increases to take effect from a date before the making of the regulations.

6.—(1) If in the case of an official pension beginning before the year 1969 the 1969 standard is less than the 1971 rate of the pension with the addition (if any) to be made to that rate under subsection (5) below, then the increase that may be made in the pension under section 1(1)(a) above shall be of the amount necessary to bring the annual rate up to 118 per cent. of the 1971 rate or, if subsection (5) below applies, to 118 per cent. of the 1971 rate with the addition under that subsection. Preservation for certain purposes of benefit of previous Acts.

(2) For any pension that qualified for an increase under the Pensions (Increase) Act 1920, the 1971 rate shall be taken to be the annual rate at which it is being paid on 31st August 1971 (or, if payment is then suspended, was last paid before that date). 1920 c. 36.

(3) Where an official pension not falling within subsection (2) above is being paid on 31st August 1971 at a rate which includes any relevant increases, then the annual rate at which it is then being paid shall be taken as the 1971 rate, unless it is shown that the rate should have been revised or there is a change of circumstances that would affect the 1971 rate if ascertained under subsection (4) below.

(4) Subject to the provisions of this section, the Minister for the Civil Service shall by order prescribe tables and rules for ascertaining, for any pension to which subsection (1) above may apply (other than a pension falling within subsection (2) above), the annual rate at which it would be payable if paid with any relevant increases; and the rate so ascertained shall be taken to be the 1971 rate, unless subsection (3) above applies.

(5) Where a pension beginning on or before 1st April 1961 is one that (but for this Act) might have been increased under section 1 of the Pensions (Increase) Act 1962, and any of the qualifying conditions other than those specified in section 3(3)(b), (c) and (d) above is satisfied, then there shall for purposes of this section be made to the 1971 rate as ascertained under subsection (4) above an addition of the amount prescribed by order of the Minister for the Civil Service as corresponding to that of the increase provided for by section 2 of that Act (additional 1962 c. 2
(11 & 12
Eliz. 2).

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increase for pensioners over 70); and where subsection (3) above applies, the like addition shall be made to the 1971 rate given by that subsection, unless the pensioner had attained the age of 70 on or before 31st August 1971.

1956 c. 39.

(6) The annual rate of official pensions beginning after the year 1968 may, if any qualifying condition is satisfied, be increased by the pension authority in respect of any period beginning on or after 1st September 1971 by such amounts as may be prescribed by order of the Minister for the Civil Service as corresponding to those of any increases that might (but for this Act) have been made in the case of those pensions under the Pensions (Increase) Acts 1944 and 1947 or the Pensions (Increase) Act 1956; and where the rate of a pension may be increased under this subsection, any increase under section 1 or 2 above shall be calculated by reference to the rate as so increased as if it were the basic rate.

1920 c. 36.

(7) Orders made for the purposes of this section shall include such provision as may be necessary to enable the pensions to which subsections (1), (5) and (6) relate to be identified without reference to the Pensions (Increase) Acts 1920 to 1969, except that pensions which qualified for an increase under the Pensions (Increase) Act 1920 need not be otherwise identified.

1965 c. 11.

1959 c. 9

(8 & 9 Eliz. 2). 1959.

(8) This section shall have effect subject to any provision made in the exercise of the powers conferred by section 5(3) above; and accordingly an order under this section may disregard any provision made in the exercise of corresponding powers conferred by the Pensions (Increase) Acts 1920 to 1969 or of powers conferred by section 17 of the Ministerial Salaries and Members' Pensions Act 1965 (past Prime Ministers), and may also disregard section 7(1) of the Judicial Pensions Act

(9) An order under this section shall take no account of any provision of the Pensions (Increase) Acts 1920 to 1969 whereby a fraction of a pound was to be treated as a whole pound and may make such other departures from the effect of those Acts as in the opinion of the Minister will, without materially reducing the rate of any pension, simplify the tables or rules or make for ease of calculation.

1944 c. 21.

1952 c. 45.

(10) For purposes of this section, "relevant increase" means, in relation to any pension, any increase that might (but for this Act) have been made in the annual rate of the pension under section 1 of any of the following Acts, that is to say the Pensions (Increase) Act 1944, the Pensions (Increase) Act 1952, the Pensions (Increase) Act 1956, the Pensions (Increase)

Act 1959, the Pensions (Increase) Act 1962, the Pensions (Increase) Act 1965 and the Pensions (Increase) Act 1969; but an order under this section may for purposes of subsection (4) treat as a relevant increase any increase authorised by or under any enactment by reference to a relevant increase, and may repeal or amend the provision authorising it accordingly.

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1959 c. 50.
1962 c. 2
(11 & 12
Eliz. 2).
1965 c. 78.
1969 c. 7.

(11) An order made (or purporting to be made) under this section shall have effect notwithstanding any error or omission in reproducing the effect of any Act or instrument, but may be amended by a further order for the purpose of correcting any such error or omission; and any such amendment may be made so as to have effect from such date as may be specified in the further order (including a date before the making of that order), and with such savings and transitional provisions as the Minister thinks proper.

(12) An order under this section shall be made by statutory instrument; and if an order made by virtue of subsection (11) above has the effect of reducing the rate of any pension, the statutory instrument shall be subject to annulment in pursuance of a resolution of either House of Parliament.

7.—(1) In this Act “pension authority” means, except as otherwise provided in Part III of Schedule 2 to this Act, the authority by whom the pension is payable; but the Minister for the Civil Service or, with his approval, the Secretary of State may by regulations provide that, in relation to any class of pensions specified in the regulations, all or any of the functions of the pension authority under this Act shall be performed on behalf of the pension authority by such other authority as may be so specified.

(2) The provisions of Schedule 3 to this Act shall have effect with regard to the manner in which the cost of increases under this Act is to be borne in the cases there mentioned and with regard to other incidental and consequential matters.

(3) Subject to the provisions of this Act, any provision made by or under any enactment shall, in so far as it relates to the apportionment of the cost of a pension between two or more authorities or funds, or to the manner in which a pension is to be paid or borne, or to the proof of title to sums payable on account of a pension, or in so far as it prohibits or restricts the assignment or charging of a pension or its application towards the payment of debts, have effect in relation to any increase of the pension under this Act as it has effect in relation to the pension:

Provided that this subsection, in so far as it relates to the apportionment of the cost of an increase under this Act, shall

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(4) Except as provided by subsection (3) above or by Schedule 3 to this Act, an increase of a pension under this Act shall not be treated as part of the pension for the purposes of any provision made by or under any enactment; and in calculating the rate of a derivative pension, any increase under this Act of the principal pension shall be disregarded.

Meaning of
"pension",
and other
supple-
mentary
provisions.

8.—(1) For purposes of this Act "pension" includes (subject to section 9 below)—

- (a) any allowance or other benefit payable (either in respect of the services of the pensioner or in respect of the services of any other person) by virtue of any superannuation scheme, whether contained in an enactment or otherwise, including a superannuation scheme providing benefits in the case of injury or death; and
- (b) any compensation payable in respect of retirement from an office or employment in pursuance of the provisions of an enactment, any compensation payable in respect of the loss, abolition or relinquishment of an office or employment occasioned by an alteration in the organisation of a department or service or by a transfer or other reorganisation of the functions of local authorities, and any compensation payable in respect of a diminution in the emoluments of an office or employment which has been occasioned as aforesaid.

(2) A pension shall be deemed for purposes of this Act to begin on the day following the last day of the service in respect of which the pension is payable (whenever the pension accrues or becomes payable), except that—

- (a) an earnings-related pension based, directly or indirectly, on emoluments received for a period not ending with the last day of that service, other than a substituted pension, is to be deemed to begin on the day following the last day of that period; and
- (b) a substituted pension is to be deemed to begin on the same day as the original pension, or, if earlier, on the day from which the surrender of the original pension takes effect.

(3) Where an earnings-related pension beginning before the year 1969 may be payable either at a rate fixed, directly or indirectly, by reference to emoluments or at a flat rate, the 1969 standard and, if relevant, the 1971 rate of the pension according to either of its rates shall be determined without regard to the other.

9.—(1) References in this Act to a pension shall not apply to any payment made by way only of a return of contributions, with or without interest; but, subject to that, this Act shall apply in relation to any allowance, benefit or compensation whether it takes the form of periodical payments or of a gratuity or other lump sum. PART I
Gratuities and
lump sums.

(2) In relation to a lump sum—

- (a) references to the time when a pension begins shall apply in accordance with section 8(2) above as in the case of a pension taking the form of periodical payments; and
- (b) references to increasing a pension in respect of a period beginning at any time shall have effect as references to increasing any sum becoming payable at or after that time on account of the lump sum or any instalment of it; and
- (c) references to the rate of a pension shall have effect as references to the amount of the lump sum or an instalment of it, as the case may require.

(3) In respect of any lump sum or instalment of a lump sum which becomes payable between 1st April and 1st September 1971 there may be paid under section 1 above on or after 1st September 1971 the same increase as if it became payable on that date.

(4) In respect of any lump sum or instalment of a lump sum which becomes payable in the half year ending with the day following the last day of a review period, or in any of the preceding half years beginning in the review period other than the first such half year, but for which the beginning date (as determined under section 8(2) above) fell before the half year in question, the order made under section 2 in respect of the review period shall authorise payment of an increase proportionate (to the nearest one-tenth of one per cent.) to any rise which the cost of living in that half year shows over the cost in the half year following the first day of the review period or, if the beginning date fell after the last-mentioned half year, then over the cost in the half year in which the beginning date fell.

The cost of living in any half year is to be taken for purposes of this subsection as the mean of the monthly figures.

(5) For purposes of section 4 above any addition to a lump sum which would have resulted from treating the length of the previous service as being increased by the length of the further service in accordance with section 4(1)(b) shall be supposed not to have become payable until the day following that on which the further service in fact terminated.

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(6) Nothing in section 6 above shall apply to any lump sum.

1962 c. 2
(11 & 12
Eliz. 2).

(7) The provisions of this section relating to lump sums shall not apply to the gratuities specified in subsection (8) below, and in relation to those gratuities section 6 above shall have effect as if they had all been included in section 6(1) of the Pensions (Increase) Act 1962 (and not only those payable in respect of local government service); but section 5(1) above shall not require a local authority to increase any such gratuity.

(8) The gratuities to which subsection (7) above applies are—

(a) any gratuity granted by way of periodical payments under any of the following enactments:—

1922 c. 59.

(i) section 23 of the Local Government and other Officers' Superannuation Act 1922 ;

1931 c. 45.

(ii) paragraph 4 of Part I of Schedule 1 to the Local Government (Clerks) Act 1931 ;

1937 c. 68.

1937 c. 69.

(iii) section 11 of the Local Government Superannuation Act 1937 or of the Local Government Superannuation (Scotland) Act 1937 ;

1953 c. 25.

(b) any gratuity granted by way of periodical payments or by way of an annuity under section 18 of the Local Government Superannuation Act 1953 ;

(c) any gratuity granted by way of periodical payments or by way of an annuity under any local Act (or provisional order confirmed by Parliament) corresponding to any of the enactments mentioned in paragraphs (a) and (b) above.

Any question whether a local Act or provisional order corresponds to any of the enactments mentioned in paragraphs (a) and (b) above shall be determined, in the event of dispute, by the Secretary of State.

PART II**SPECIAL EXTENSIONS**

Overseas
government
pensions
(India, Pakistan
and Burma).

10. The Secretary of State, with the approval of the Minister for the Civil Service, may by regulations direct that, in relation to any of the following pensions, that is to say,—

(a) any of the pensions specified in Schedule 4 to this Act ;
and

(b) any pension of which the cost is to be reimbursed in whole or in part by Her Majesty's Government in the United Kingdom to the Government of India, Pakistan or Burma under arrangements made in pursuance of section 1 of the Overseas Aid Act 1966, or in respect

1966 c. 21.

of which the Secretary of State determines, with the consent of the Minister, that Her Majesty's Government would be prepared to enter into arrangements for the cost to be so reimbursed ;

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the provisions of Part I of this Act shall, with such modifications, adaptations and exceptions as may be specified in the regulations, apply as if the pension were an official pension specified in Part I of Schedule 2.

11.—(1) The Secretary of State may, with the approval of the Minister for the Civil Service, make regulations authorising the payment by the Secretary of State, in respect of pensions to which this section applies or any class of such pensions, of supplements of such amount as may be specified in the regulations in accordance with this section. Other overseas government pensions.

(2) This section applies—

- (a) to any pension described in Schedule 5 to this Act and falling within subsection (3) below ; and
- (b) to any pension payable by the Secretary of State under section 5(1) of the Superannuation (Miscellaneous Provisions) Act 1967 (former officers of government of Palestine) ; and
- (c) to any pension of which the cost is to be reimbursed in whole or in part by Her Majesty's Government in the United Kingdom to the government of an overseas territory (other than the government of India, Pakistan or Burma) under arrangements made in pursuance of section 1 of the Overseas Aid Act 1966, or in respect of which the Secretary of State determines, with the consent of the Minister for the Civil Service, that Her Majesty's Government would be prepared to enter into arrangements for the cost to be so reimbursed ;

except that it does not apply to compensation which is payable either by way of lump sum or by instalments over a fixed period and which appears to the Secretary of State to be payable in consequence of constitutional changes or circumstances arising from such changes in any territory or territories.

(3) This section shall apply to a pension by virtue of subsection (2)(a) above if the pension—

- (a) is payable to or in respect of a person who is certified by the Secretary of State, with the consent of the Minister for the Civil Service (or has been certified by any Minister under section 3 of the Pensions (Increase) Act 1962) as having been an overseas officer in relation

1962 c. 2
(11 & 12
Eliz. 2).

PART II

to any territory in or for which any services giving rise to the pension were rendered ; and

- (b) in the case of a derivative pension, is payable either by the government of an overseas territory or in accordance with an enactment, scheme or other instrument specified in the regulations as being approved by the Secretary of State for the purposes of this section.

(4) The supplements which may be authorised by regulations under this section in the case of pensions of any class are supplements, in respect of a period beginning on or after 1st September 1971, of amounts which, when account is taken of any increase or supplement payable in respect of the pensions apart from this section and other additions to the value of those pensions, appear to the Secretary of State to correspond as nearly as may be with the increases payable under Part I of this Act on official pensions.

(5) Regulations under this section may make different provision in relation to different classes of pension, and—

- (a) may prescribe the manner in which applications for supplements under this section are to be made and the evidence required in connection with such applications ; and
- (b) contain such other incidental provisions as the Secretary of State thinks fit.

(6) The consent of the Minister for the Civil Service under subsection (3) above may be given generally in respect of persons of such descriptions as may be specified in the consent and subject to such limitations (if any) as may be so specified.

(7) For the purposes of this section “ overseas territory ” means any territory or country outside the United Kingdom, and “ government of an overseas territory ” includes a government constituted for two or more overseas territories and any authority established for the purpose of providing or administering services which are common to, or relate to matters of common interest to, two or more overseas territories.

Other overseas pensions.

12.—(1) Where it appears to the Secretary of State just so to do having regard to things done by, or to the responsibilities of, the government of any overseas territory at a time when Her Majesty exercised jurisdiction there through Her Majesty's Government in the United Kingdom, the Secretary of State may, with the approval of the Minister for the Civil Service, make regulations authorising the payment by the Secretary of State, in respect of pensions to which this section applies or any class of such pensions, of supplements of such amounts as may be specified in the regulations in accordance with this section.

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(2) This section applies to pensions payable wholly or partly in respect of service in the overseas territory, being service rendered to any authority or institution in the overseas territory other than the government of the overseas territory, and rendered by a person who is certified by the Secretary of State, with the consent of the Minister for the Civil Service, as having been an overseas officer in relation to that territory:

Provided that this section does not apply to a derivative pension unless it is payable either by the government of the overseas territory or in accordance with an enactment, scheme or other instrument specified in the regulations as being approved by the Secretary of State for the purposes of this section.

(3) The consent of the Minister for the Civil Service under subsection (2) above may be given generally in respect of persons of such descriptions as may be specified in the consent and subject to such limitations (if any) as may be so specified.

(4) Subsections (4), (5) and (7) of section 11 of this Act shall apply in relation to this section as they apply in relation to that.

13.—(1) The Minister for the Civil Service may make regulations for conferring on persons who—

Pensions under approved pension schemes.

- (a) are or have been employed in the civil service of the State; and
- (b) were recruited and are or were so employed in a territory outside the United Kingdom; and
- (c) are or were subject to a superannuation scheme approved by the Minister for purposes of this section;

such benefits (enjoyable after the termination of the employment) as appear to the Minister to be appropriate having regard to the benefits provided by Part I of this Act for persons whose superannuation benefits are regulated under the Superannuation Act 1965 and to the circumstances of that territory.

(2) The Minister for the Civil Service may make regulations for conferring on persons who—

- (a) are or have been employed in the civil service of the State or in any capacity listed in Schedule 6 to this Act; and
- (b) are or were subject to a superannuation scheme operated under the Federated Superannuation System for Universities, to the Federated Superannuation Scheme for Nurses and Hospital Officers or to any other scheme approved by the Minister for the purposes of this section;

PART II

1965 c. 74.

such benefits (enjoyable after the termination of the employment) as appear to the Minister to be appropriate having regard to the benefits provided by Part I of this Act for persons whose superannuation benefits are regulated under the Superannuation Act 1965.

(3) The Minister for the Civil Service may also make regulations for empowering or requiring a local authority to provide such benefits as aforesaid for persons who are or have been employed by the authority or, in connection with functions afterwards transferred to the authority, have been employed by another local authority, and who are or were subject to any such superannuation scheme as is mentioned in subsection (2)(b) above.

(4) Any power to make regulations conferred by this section on the Minister for the Civil Service shall be exercisable also, with his approval, by the Secretary of State.

(5) Regulations under this section may make different provision for different classes of person, and may provide for benefits to take effect from a date before the making of the regulations.

PART III**SUPPLEMENTARY**

Adjustment
of police
pensions.
1948 c. 24.

14.—(1) Regulations made under section 1 of the Police Pensions Act 1948 so as to take effect from 1st September 1971 may, notwithstanding anything in section 3 of that Act, include provisions relating to pensions payable to or in respect of persons who have been members of a police force, but have ceased to be so or died before the date when the regulations come into operation, in so far as those provisions appear to the Secretary of State to be necessary or expedient in connection with the passing of this Act.

(2) Regulations made under section 1 of the Police Pensions Act 1948, and stating that they contain only such provisions as appear to the Secretary of State to be necessary or expedient in connection with the passing of this Act, may be made to take effect from 1st September 1971 although made after that date; and regulations made under that section with respect only to derivative pensions, other than substituted pensions, and stating that they contain only such provisions as appear to the Secretary of State to be necessary or expedient in connection with an order under section 2 above, may be made to take effect from the same 1st September as that order, although made after that date.

PART III

(3) Where it appears to the Secretary of State expedient to postpone the operation of this Act with respect to any pensions pending the making with respect to them of provision under section 5(3) above, or the making with respect to them under section 1 of the Police Pensions Act 1948 of such provision as may be necessary or expedient in connection with the passing of this Act (or pending consideration of the question of making any such provision), he may by regulations under section 1 of that Act provide that, so long as the regulations remain in force, the provisions of this Act other than this section shall not affect those pensions. 1948 c. 24.

(4) Subsections (2) and (3) above shall apply in relation to regulations under section 34 or 35 of the Police Act 1964, or under section 26 or 27 of the Police (Scotland) Act 1967, as they apply in relation to regulations under section 1 of the Police Pensions Act 1948. 1964 c. 48. 1967 c. 77.

(5) In any case in which by subsection (2) above regulations under section 1 of the Police Pensions Act 1948 are authorised to be made with retrospective effect, then whether or not they are so made, they may be made without compliance with section 1(7) of that Act (which requires regulations under the section to be approved in draft by both Houses of Parliament); but where by virtue of this subsection any regulations are made without compliance with section 1(7), the statutory instrument shall be subject to annulment in pursuance of a resolution of either House of Parliament; and this subsection shall apply to regulations made by virtue of subsection (3) above as it applies to those authorised by subsection (2) to be made with retrospective effect.

15.—(1) Any order of the Secretary of State varying the Firemen's Pension Scheme with effect from 1st September 1971 may include provisions relating to pensions payable to or in respect of persons who have been members of a fire brigade, but have ceased to be so or died before the date when the order comes into operation, in so far as those provisions appear to the Secretary of State to be necessary or expedient in connection with the passing of this Act. Adjustment of fire service pensions.

(2) Any order of the Secretary of State varying the Firemen's Pension Scheme with effect from any 1st September from which an order under section 2 above takes effect may make such provision as appears to the Secretary of State to be necessary or expedient in connection with the order under section 2 for increasing any flat-rate pensions, notwithstanding that the pensions are payable to or in respect of persons who have ceased to be members of a fire brigade or died before the date when the order varying the Scheme comes into operation.

PART III

(3) An order of the Secretary of State varying the Firemen's Pension Scheme, and stating that it contains only such provisions as appear to him to be necessary or expedient in connection with the passing of this Act, may be made to take effect from 1st September 1971, although made after that date; and an order of the Secretary of State varying the Scheme, and stating that it contains only such provisions as appear to him to be necessary or expedient in connection with an order under section 2 above, may be made to take effect from the same 1st September as that order, although made after that date.

(4) Where a pension payable under the Firemen's Pension Scheme is or has been granted at the higher of a flat rate and a rate fixed by reference to emoluments, then—

- (a) no increase shall be made by virtue of section 1 or 2 above in the flat rate or in any substituted pension computed by reference to the flat rate; and
- (b) the flat rate may be increased by virtue of subsection (2) above as if the pension were a flat-rate pension.

(5) Where a pension payable under the Firemen's Pension Scheme, or any such pension as is mentioned in paragraph 45 or 46 of Schedule 2 to this Act, is or has been granted at the higher of a flat rate and a rate fixed by reference to emoluments, the grant shall have effect, in relation to any period beginning on or after 1st September 1971, as a grant at whichever rate is for the time being the higher after account is taken of the operation of this Act.

(6) Where it appears to the Secretary of State expedient to postpone the operation of this Act with respect to any pensions payable under the Firemen's Pension Scheme pending the making with respect to them of provision under section 5(3) above, or the making with respect to them under section 26 of the Fire Services Act 1947 of such provision as may be necessary or expedient in connection with the passing of this Act (or pending consideration of the question of making any such provision), he may by order under section 26 of that Act provide that, so long as the order remains in force, the provisions of this Act other than this section shall not affect those pensions; and any order made by virtue of this subsection may be revoked or varied by a further order under section 26.

1947 c. 41.

(7) The order to be made under section 6 above may omit any special provision which, apart from this subsection, would be required for pensions payable under the Firemen's Pension Scheme or for pensions mentioned in paragraph 45 or 46 of Schedule 2 to this Act, if it appears to the Minister for the Civil Service, having regard in particular to any changes or

proposed changes in the Scheme, that the provision is more appropriately or conveniently made by regulations under section 5(3) above.

PART III

(8) In this section "the Firemen's Pension Scheme" means a scheme in force under section 26 of the Fire Services Act 1947 c. 41. 1947 ; but nothing in this section shall authorise any alteration of provisions of the Scheme having effect by virtue of section 27(3) of that Act (which provides for certain features of previous arrangements to be incorporated in the Scheme where a person has so elected under the section), and subsection (4)(a) above shall not prevent an increase being made under this Act in the rate of a pension where the rate depends on section 27(3).

16. There shall be defrayed out of moneys provided by Expenses. Parliament—

- (a) any expenditure incurred by a government department under or by virtue of this Act ; and
- (b) any increase attributable to any provision of this Act in the sums payable out of moneys so provided under any other enactment.

17.—(1) For purposes of this Act, unless the context otherwise Interpretation. requires,—

"basic rate" means the annual rate of a pension apart from any increase under or by reference to this Act or any enactment repealed by this Act, or any corresponding increase made otherwise than under or by reference to this Act or an enactment repealed by it ;

"derivative pension" and "principal pension" mean a pension which is not, and one which is, payable in respect of the pensioner's own services ;

"earnings-related pension" means a pension computed by reference to a rate of emoluments (whether actual emoluments or not and whether final or average emoluments), or payable at alternative rates one of which is so computed, and includes a derivative pension computed by reference to the rate of an earnings-related pension ;

"flat rate" means a rate fixed otherwise than by reference to a rate of emoluments or to the rate of another pension, and "flat-rate pension" means a pension payable at a flat rate only, but includes a derivative pension computed by reference to the rate of a flat-rate pension ;

"local authority" and "local government service" have the meanings given by Schedule 3 to this Act ;

PART III

“pension” has the meaning given by section 8 above, “official pension” that given by section 5(1), and “pension authority” that given by section 7(1), and the time when a pension “begins” is that stated in section 8(2);

“qualifying condition” means one of the conditions laid down by section 3 above;

“substituted pension” means a pension granted in consideration of the surrender of the whole or part of another pension (“the original pension”).

(2) References in this Act to an enactment include an enactment in a local Act and a provisional order confirmed by Parliament.

(3) Any power to make regulations which is conferred by this Act is a power exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Repeal, and
transitional
provisions.

18.—(1) The enactments mentioned in Schedule 7 to this Act are hereby repealed to the extent specified in column 3 of the Schedule, but without prejudice to the operation of the repealed provisions as respects any period ending on or before 31st August 1971.

(2) Where at 31st August 1971 authority to increase or supplement any pensions is given by regulations under any enactment repealed by subsection (1) above, being an enactment corresponding to any provision of Part II of this Act, then in respect of any period between that date and the coming into force of regulations under that provision there may be paid on those pensions the like increase or supplement, and the cost shall be defrayed in the same way, as if this Act had not been passed; and the first regulations made with respect to any pensions under any provision of Part II may take effect from 1st September 1971, notwithstanding that they are made after that date (but not so as to reduce any increase or supplement payable by virtue of this subsection in respect of a period before they come into force).

(3) Where at 31st August 1971 there are in force with respect to any official pensions (other than pensions to which section 14(3) or 15(6) above applies) regulations under any enactment repealed by subsection (1) above, being an enactment corresponding to section 5(3) above, then unless or until regulations come into force under section 5(3) with respect to those pensions, or the Minister for the Civil Service by order made by statutory instrument directs that this subsection shall not apply to them, those pensions shall not be increased in accordance with this Act, but the like increases may be paid as if this Act had not been passed.

(4) Except as otherwise provided by or under this Act, the repeal by this Act of the Pensions (Increase) Acts 1920 to 1969 shall not affect the operation of any provision made otherwise than by or under those Acts and authorising increases in pensions by reference to increases under those Acts or any of them.

(5) The enactments mentioned in Schedule 8 to this Act are hereby repealed to the extent specified in column 3 of the Schedule, but subject to the saving in Part II of the Schedule.

19.—(1) This Act may be cited as the Pensions (Increase) Act 1971. Short title
and extent.

(2) This Act extends to Great Britain only, except that—

- (a) it extends to Northern Ireland in relation to pensions payable under Schedule 8 to the Government of Ireland 1920 c. 67. Act 1920 (former Irish civil servants) or payable to or in respect of an existing Irish officer within the meaning of that Act under the Superannuation Acts 1834 to 1965, or payable under or by virtue of any other Act extending to Northern Ireland out of the Consolidated Fund of the United Kingdom or out of moneys provided by the Parliament of the United Kingdom ; and
- (b) it extends to Northern Ireland, the Isle of Man and the Channel Islands in relation to pensions payable by the trustees of a trustee savings bank or by the Inspection Committee of trustee savings banks ; and
- (c) section 18(5) and Part II of Schedule 8 extend to Northern Ireland.

SCHEDULES

Section 1.

SCHEDULE 1

TABLE FOR CONVERSION OF BASIC RATE TO 1969 STANDARD

[NOTE:—The year to be taken is that in which the pension is, under section 8(2), to be treated as beginning.]

<i>Year</i>	<i>Multiplier</i>	<i>Year</i>	<i>Multiplier</i>	<i>Year</i>	<i>Multiplier</i>
Any year		1951 ...	1·886	1960 ...	1·383
up to		1952 ...	1·728	1961 ...	1·338
1944 ...	3·052	1953 ...	1·675	1962 ...	1·282
1945 ...	2·583	1954 ...	1·645	1963 ...	1·258
1946 ...	2·348	1955 ...	1·574	1964 ...	1·218
1947 ...	2·327	1956 ...	1·501	1965 ...	1·162
1948 ...	2·179	1957 ...	1·448	1966 ...	1·118
1949 ...	2·119	1958 ...	1·404	1967 ...	1·091
1950 ...	2·059	1959 ...	1·397	1968 ...	1·042

Sections 4, 5, 7
and 15.

SCHEDULE 2

OFFICIAL PENSIONS

PART I

STATE PENSIONS

Ministerial and parliamentary

1965 c. 58. 1. A pension payable under section 3 of the Ministerial Salaries Consolidation Act 1965 (Prime Ministers).

1832 c. 111. 2. A pension payable under the Lord Chancellor's Pension Act 1832.

1959 c. 1
(8 & 9 Eliz. 2). 3. A pension payable under Mr. Speaker Morrison's Retirement Act 1959 or the Hon. Lady Hylton-Foster's Annuity Act 1965.

1965 c. 70.

Civil Service

4. A pension payable under the Superannuation Acts 1965 and 1967.

Administration of justice

5. A pension payable under any of the following:—

- 1876 c. 59. (a) the Appellate Jurisdiction Act 1876 (Lords or Appeal);
- 1925 c. 49. (b) section 14 of the Supreme Court of Judicature (Consolidation) Act 1925 (higher judiciary in England and Wales);
- 1808 c. 145. (c) the Judges' Pensions (Scotland) Act 1808 (higher judiciary in Scotland);
- 1877 c. 57. (d) section 19 of the Supreme Court of Judicature Act (Ireland) 1877 (higher judiciary in Northern Ireland).

1950 c. 11
(14 & 15
Geo. 6). 6. A pension payable out of the Consolidated Fund or out of moneys provided by Parliament, under Part I of the Administration of Justice (Pensions) Act 1950 (widows and children of judges and

senior officials in the legal system, including the Chairman and Deputy Chairman of the Monopolies Commission). SCH. 2

7. A pension payable under section 9 of the County Courts Act 1934 c. 53. 1934 (county court judges).

8. A pension payable under section 20 of the Sheriff Courts 1907 c. 51. (Scotland) Act 1907 or section 1 of the Sheriffs' Pensions (Scotland) 1961 c. 42. Act 1961 (sheriffs and salaried sheriffs-substitute).

9. A pension payable under section 34(1) of the Courts-Martial 1951 c. 46. (Appeals) Act 1951 (Judge Advocate General).

10. A pension payable under section 4(5) of the Criminal Justice 1956 c. 34. Administration Act 1956 (Recorder of Manchester or Liverpool).

11. A pension payable under the Superannuation (President of 1954 c. 37. the Industrial Court) Act 1954.

12. A pension payable under section 2(6) of the Lands Tribunal 1949 c. 42. Act 1949 to a former member of the Lands Tribunal.

13. A pension payable under the Police Magistrates (Superannuation) Acts 1915 and 1929.

Police and firemen

14. A pension payable by a Secretary of State under the Police 1945 c. 17. (Overseas Service) Act 1945 to a person who at the time of his retirement was engaged as mentioned in section 1(1) of the Act. (9 & 10 Geo. 6).

This paragraph includes a substituted pension not so payable if the original pension is so payable.

15. A pension payable by a Secretary of State under the Police 1948 c. 24. Pensions Act 1948 to a person who at the time of his retirement—

- (a) was engaged as mentioned in section 1(1) of the Police (Overseas Service) Act 1945 ; or
- (b) was engaged in service in respect of which the provisions of section 5 of the Overseas Service Act 1958 had effect ; 1958 c. 14. or
- (c) was serving as an inspector or assistant inspector of constabulary under the Police Act 1964 or the Police (Scotland) 1964 c. 48. Act 1967 ; or 1967 c. 77.
- (d) was engaged in central service pursuant to section 43 of the Police Act 1964 or section 38 of the Police (Scotland) Act 1967.

This paragraph includes a substituted pension not so payable if the original pension is so payable.

16. A pension payable by a Secretary of State in accordance with a scheme in force under section 26 of the Fire Services Act 1947 c. 41. 1947.

This paragraph does not apply to a flat-rate pension, except where the rate depends on section 27(3) of that Act.

SCH. 2

Teachers

17. A pension payable under the Elementary School Teachers (Superannuation) Acts 1898 to 1912.

18. A pension payable under the Teachers (Superannuation) Acts 1918 to 1956.

This paragraph does not include—

- (a) a pension specified in paragraph 56 of this Schedule ; or
- (b) so much of any pension payable under the said Acts of 1918 to 1956 as would not have been payable apart from an election under section 10(1) of the Teachers (Superannuation) Act 1956.

1956 c. 53.

19. A pension payable under the Education (Scotland) Acts 1939 to 1967.

S.I. 1957/356.

This paragraph does not include a pension granted under Regulation 45 of the Teachers (Superannuation) (Scotland) Regulations 1957.

1967 c. 12.

20. A pension payable under regulations made under section 1 or section 7 of the Teachers' Superannuation Act 1967.

1968 c. 12.

21. A pension payable under the Teachers Superannuation (Scotland) Act 1968.

National health service

22. A pension payable by a Secretary of State under or by virtue of any of the following:—

1946 c. 81.

1947 c. 27.

- (a) section 6 of the National Health Service Act 1946 or of the National Health Service (Scotland) Act 1947 (former officers of voluntary hospitals) ;
- (b) section 67 or 68 of the National Health Service Act 1946 or section 66 or 67 of the National Health Service (Scotland) Act 1947 (former officers of hospital authorities and others engaged in health services).

23. A pension payable by a Secretary of State in consequence of any change affecting the National Health Service and payable—

1958 c. 55.

1963 c. 33.

1968 c. 46.

- (a) in pursuance of an order under section 11(9) of the National Health Service Act 1946 ; or
- (b) under regulations made under section 60(2) of the Local Government Act 1958, section 85(4) of the London Government Act 1963 or section 35 of the Health Services and Public Health Act 1968.

National insurance

1946 c. 67.

24. A pension payable by a Secretary of State in pursuance of regulations made under section 67 of the National Insurance Act 1946 (loss of employment or diminution of emoluments attributable to passing of that Act of former employees of approved societies etc.).

25. A pension payable in pursuance of rules made under section 3 of the Superannuation (Miscellaneous Provisions) Act 1948 (former employees of approved societies etc.). SCH. 2
1948 c. 33.

This paragraph does not include a pension payable under the Superannuation Acts 1965 and 1967.

26. A pension payable under section 79 of the National Insurance Act 1965 (National Insurance Commissioners). 1965 c. 51.

Diplomatic, colonial and overseas service

27. A pension payable under the Governors Pensions Acts 1957 and 1967.

28. A pension payable under the Judges Pensions (India and Burma) Act 1948. 1948 c. 4
(12, 13 & 14
Geo. 6).

29. A pension payable under the Diplomatic Salaries &c. Act 1869. 1869 c. 43.

Service in Ireland

30. A pension payable under Schedule 8 to the Government of Ireland Act 1920 (former Irish civil servants). 1920 c. 67.

31. A pension payable to or in respect of an existing Irish officer within the meaning of the Government of Ireland Act 1920, under the Superannuation Acts 1834 to 1965.

32. A pension payable under the enactments relating to pensions of the Royal Irish Constabulary.

This paragraph does not include a pension payable under regulations made under section 1 of the Royal Irish Constabulary (Widows' Pensions) Act 1954. 1954 c. 17.

Miscellaneous

33. A pension payable by a Secretary of State in respect of service as officer of a local valuation panel, under regulations made under section 85(4) of the London Government Act 1963. 1963 c. 33.

34. A pension payable under section 29 of the Finance Act 1932, section 60 of the Finance (No. 2) Act 1945 or section 62 of the Finance Act 1946 (compensation to tax collectors and assessors for loss of employment). 1932 c. 25.
1945 c. 13
(9 & 10 Geo. 6).
1946 c. 64.

35. A pension payable by way of residual compensation under Part IV of the Gas (Staff Compensation) Regulations 1949 as amended by the Gas (Staff Compensation) (Amendment) Regulations 1951 (gas meter examiners and others employed by local authorities before nationalisation). S.I. 1949/2289.
S.I. 1951/1327.

36. A widow's pension payable by a Secretary of State in accordance with a scheme framed by the then Army Council under the Injuries in War (Compensation) Act 1914 (Session 2) for established civil servants employed abroad within the sphere of military operations. 1914 c. 18
(5 & 6 Geo. 5.).

SCH. 2
1966 c. 30.

37. A pension payable by a Secretary of State under regulations made under section 17(5) of the Reserve Forces Act 1966 (civilian employees of Territorial and Auxiliary Forces Associations).

1968 c. 14.

38. A pension payable by a Secretary of State in respect of service with the St. Andrew's Ambulance Association, by reference to regulations made under section 4 of the Public Expenditure and Receipts Act 1968.

PART II

PENSIONS OUT OF LOCAL FUNDS

Local government service

39. A pension payable by a local authority in respect of service ending with local government service, other than a pension within paragraph 44, 45 or 52 of this Schedule or within the exception from paragraph 44.

Administration of justice

1949 c. 101.

40. A pension payable under section 33 of the Justices of the Peace Act 1949 (stipendiary magistrates).

1950 c. 11
(14 & 15
Geo. 6).

41. A pension payable by a local authority under Part I of the Administration of Justice (Pensions) Act 1950 (widows and children of stipendiary magistrates and of chairmen and deputy chairmen of London Sessions).

42. A pension payable under section 22 of the Administration of Justice (Pensions) Act 1950 (chairmen and deputy chairmen of London Sessions).

Police and firemen

43. A pension payable (otherwise than as mentioned in paragraph 14 or 15 above) under any of the following:—

1948 c. 24.

(a) the Police Pensions Act 1948, or any enactment repealed by that Act or by the Police Pensions Act 1921 ;

1921 c. 31.

1964 c. 48.

(b) section 34 or 35 of the Police Act 1964 ;

1967 c. 77.

(c) section 26 or 27 of the Police (Scotland) Act 1967.

This paragraph does not include a derivative pension other than a substituted pension, nor a substituted pension if the original pension was a derivative pension.

1947 c. 41.

44. A pension payable by a local authority, in respect of service as a member of a fire brigade, in accordance with a scheme in force under section 26 of the Fire Services Act 1947.

This paragraph does not apply to a flat-rate pension, except where the rate depends on section 27(3) of that Act.

45. A pension payable by a local authority, otherwise than as mentioned in paragraph 44 above, in respect of— SCH. 2

- (a) service as a professional fireman (as defined by the Fire Brigade Pensions Act 1925); or
- (b) service which, by or under any enactment, is treated as approved service in a fire brigade.

46. A derivative pension payable under the Police Pensions Act 1921 in respect of a person to whom the National Fire Service (Preservation of Pensions) (Police Firemen) Regulations 1941 applied at the time of that person's death or retirement.

Court and police staffs

47. A pension payable by a local authority in England or Wales under any enactment other than section 15(1) to (7) of the Superannuation (Miscellaneous Provisions) Act 1967 in respect of—

- (a) service as a justices' clerk or as the employee of a justices' clerk; or
- (b) service as a person employed by a magistrates' courts committee to assist a justices' clerk.

48. A pension payable by the Greater London Council in respect of service ending with employment by the committee of magistrates for the inner London area.

49. A pension payable by the Greater London Council under any enactment in respect of service in the employment of the standing joint committee for the county of London as clerk of the peace or deputy clerk of the peace or in any other capacity.

50. A pension payable under section 15(1) to (7) of the Superannuation (Miscellaneous Provisions) Act 1967 (metropolitan civil staffs).

51. A pension payable by a local authority, or by a police authority in England or Wales other than a local authority, under any enactment other than section 15 of the Superannuation (Miscellaneous Provisions) Act 1967 in respect of service ending with—

- (a) service as a civilian employed under section 10 of the Police Act 1964 by such a police authority; or
- (b) service as a traffic warden employed by such a police authority under section 2 of the Road Traffic and Roads Improvement Act 1960 or section 81(9) of the Road Traffic Regulation Act 1967. 1967 c. 76.

52. A pension payable by a police authority under regulations made under section 60(2) of the Local Government Act 1958, section 85(4) of the London Government Act 1963 or section 4 of the Public Expenditure and Receipts Act 1968 (compensation for loss of employment or emoluments due to reorganisation of local government etc.).

SCH. 2

Probation and after-care service

1953 c. 25. 53. A pension payable in accordance with regulations under Schedule 4 to the Local Government Superannuation Act 1953 in respect of service as a probation officer or as a person appointed to assist a probation officer in the performance of his duties by a probation and after-care committee, by the Secretary of State or, before 1st July 1944, by a probation officer.

54. A pension payable by a local authority in England and Wales in respect of service as a member of the staff of an approved probation home or an approved probation hostel.

1958 c. 55.
1963 c. 33. 55. A pension payable by a probation and after-care committee under regulations made under section 60(2) of the Local Government Act 1958 or section 85(4) of the London Government Act 1963 (compensation for loss of employment or emoluments due to reorganisation of local government).

Teachers and school staff

1925 c. 59. 56. A pension payable by a local authority under section 14(3)(b) of the Teachers (Superannuation) Act 1925.

1921 c. 51.
1944 c. 31. 57. A pension payable by a local authority in England or Wales under any enactment in respect of service as an employee of the managers of a non-provided school within the meaning of the Education Act 1921 or a voluntary school within the meaning of the Education Act 1944.

58. A pension payable by a local authority in England or Wales under any enactment in respect of service as an employee of the governing body of any school or educational institution (other than a public elementary school or a county or voluntary school) if the whole cost of maintaining the school or educational institution after deducting such part of the cost (if any) as is met by the governing body fell or falls to be met by the local authority.

59. A pension payable by a local authority in respect of service as a member of the staff of an approved school.

Miscellaneous

1937 c. 68.
1937 c. 69. 60. A pension payable by a local authority under any enactment in respect of service as a registration officer as defined in section 40 of the Local Government Superannuation Act 1937 or section 34 of the Local Government Superannuation (Scotland) Act 1937.

1926 c. 59. 61. A pension payable under section 6 of the Coroners (Amendment) Act 1926 (county and borough coroners).

1948 c. 26.
1967 c. 9. 62. A pension payable by a local authority in respect of service as a clerk, officer or servant employed under section 47 of the Local Government Act 1948 or section 92 of the General Rate Act 1967 by a local valuation panel.

63. A pension payable by a local authority in respect of service ending with service as a rent officer or deputy rent officer under

section 22 or 24 of the Rent Act 1965 or section 40 of the Rent Act 1968. **SCH. 2**

1965 c. 75.
1968 c. 23.

64. A pension payable by a local authority by way of such compensation as is mentioned in section 8(1)(b) of this Act.

PART III

OTHER PENSIONS

65. A pension payable by the trustees of a trustee savings bank or by the Inspection Committee of trustee savings banks.

66. A pension payable in respect of service with, or as compensation for loss of employment on the winding up of, the Raw Cotton Commission.

In relation to a pension within this paragraph the Minister for the Civil Service shall be taken to be the pension authority.

67. A pension payable by the Greater London Council or the council of a London borough under section 80(9) to (11) of the London Passenger Transport Act 1933.

1933 c. 14.

68. A pension payable by the council of the London borough of Southwark in respect of employment in the borough market, Southwark.

SCHEDULE 3

Sections 7
and 17.

FURTHER ADMINISTRATIVE, INCIDENTAL AND CONSEQUENTIAL PROVISIONS

Liability for cost of increase of certain local authority, police and fire service pensions

1.—(1) Where a pension to which this paragraph applies is increased under this Act, the cost of the increase shall be defrayed by the pension authority; but where the pension authority are not the last employing authority, the last employing authority shall reimburse to the pension authority that cost or so much of it as is not required by paragraph 2 below to be reimbursed by some other authority or to be borne by the pension authority.

(2) For the purposes of this paragraph, “the last employing authority” means, in relation to a pension, the authority to whom the latest services in respect of which the pension is payable were rendered, unless the functions in connection with which they were rendered have been transferred to another authority; and where they have been so transferred, “the last employing authority” means the authority by whom those functions are for the time being exercisable.

(3) Any question who are the last employing authority for the purposes of this paragraph shall, in default of agreement, be determined by the Secretary of State.

(4) Nothing in this paragraph shall affect the operation in relation to increases under this Act of the provisions of section 14 of the

SCH. 3
1890 c. 45.
1921 c. 31.

Police Act 1890 and section 10 of the Police Pensions Act 1921 as to the payment of pensions partly out of the police fund and partly out of moneys provided by Parliament.

(5) This paragraph applies to the pensions specified in the following paragraphs of Schedule 2 to this Act, that is to say, paragraphs 39, 44, 45, 47, 48, 49, 51, 53, 54, 56 to 60, 62 and 63.

2.—(1) Where a pension to which this paragraph applies is increased under this Act, and by virtue of section 7(3) any part of the cost of the increase would, but for paragraph 1 above, be apportioned to a fund not administered by the pension authority, that part of the cost shall be reimbursed to the pension authority; and the cost of reimbursement shall be defrayed and borne as if it were the cost of an increase under this Act on a separate pension payable out of that fund in respect of the employment giving rise to the apportionment to that fund.

(2) Where a pension to which this paragraph applies is increased under this Act, and—

- (a) the pension is payable partly in respect of service in respect of which another such pension was payable ("the previous service") and partly in respect of further service rendered after the termination of the previous service; and
- (b) different authorities are the last employing authority in relation to the two pensions, but the cost of the final pension does not fall to be apportioned;

then so much of the cost of the increase as is referable to the previous service on an apportionment made according to the length of that service as compared with that of the further service shall be reimbursed to the pension authority by the authority who are the last employing authority in relation to the earlier pension (or, if the pension authority are that authority, shall be borne by the pension authority and shall not be reimbursed in accordance with paragraph 1 above by the last employing authority).

(3) Paragraphs 1(2) and (3) above shall apply for purposes of this paragraph as they apply for purposes of paragraph 1.

(4) This paragraph applies to the same pensions as paragraph 1 above, except that it does not apply to pensions specified in paragraphs 44, 45 and 56 of Schedule 2.

Pensions of former civil servants payable by Post Office

3. It shall be the duty of the Post Office to increase in accordance with this Act any pension which is payable under the Superannuation Acts 1965 and 1967 but in relation to which the Post Office are the pension authority by virtue of section 44 of the Post Office Act 1969; and where under that Act part of a pension so payable is to be paid

by the Post Office and part is not, this Act shall apply as if the two parts were separate pensions.

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Re-employed teachers

4. Any reference to the Pensions (Increase) Acts 1920 to 1969 (or any of them) which is contained—

- (a) in regulation 50 of the Teachers' Superannuation Regulations 1967, as inserted by regulation 13 of the Teachers' Superannuation (Amendment) Regulations 1970 ; or S.I. 1967/489. S.I. 1970/10.
- (b) in regulation 50 of the Teachers Superannuation (Scotland) Regulations 1969 ; S.I. 1969/77.

shall have effect, in relation to any period after 31st August 1971, as a reference to Part I of this Act (but without prejudice to the power to vary or revoke those regulations).

Retired staff of former approved schools etc.

5. In Schedule 3 to the Children and Young Persons Act 1969 (which relates to the arrangements to take effect on an institution ceasing under section 46 to be an approved school, remand home, approved probation hostel or approved probation home), for paragraph 1(3) there shall be substituted— 1969 c. 54.

“(3) In respect of any such superannuation or other benefits as are referred to in sub-paragraph (2)(b) of this paragraph, being benefits to which a person became entitled before the specified date and to which the Pensions (Increase) Act 1971 does not apply, the section 46 order may contain such provisions for securing the payment of additional amounts (calculated by reference to increases under that Act or under any enactment repealed by it) as the Secretary of State considers appropriate having regard to any arrangements obtaining with respect to those benefits before the specified date.”

Meaning of “local authority” and “local government service”

6.—(1) For the purposes of this Act “local authority” means—

- (a) in England and Wales the Greater London Council, the Common Council of the City of London, the council of a county, county borough, London borough or county district and any other local authority within the meaning of the Local Loans Act 1875 ; and 1875 c. 83.
- (b) in Scotland any county council, town council or district council and any other authority to whom section 270 of the Local Government (Scotland) Act 1947 applies. 1947 c. 43.

(2) References in this Act to a local authority shall apply also—

- (a) to any joint board or joint committee established under or by virtue of any Act if all the constituent authorities are local authorities ; and

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1922 c. 59.

1937 c. 68.

1937 c. 69.

(b) to any other joint committee established by a combination scheme under section 5(1) and (2) of the Local Government and other Officers' Superannuation Act 1922 or under section 2 of the Local Government Superannuation Act 1937 or the Local Government Superannuation (Scotland) Act 1937; and

1968 c. 73.

(c) in relation to cases where they are the employing authority for purposes of the Local Government Superannuation Act 1937 or the Local Government Superannuation (Scotland) Act 1937, any passenger transport executive established under section 9(1) of the Transport Act 1968.

7.—(1) For the purposes of this Act "local government service" means service under any local authority, but includes service which by virtue of any enactment mentioned in sub-paragraph (2) below is, for superannuation purposes, treated as service under a local authority.

(2) The enactments referred to in sub-paragraph (1) above are—

(a) the following enactments (which relate to war service), that is to say,—

1916 c. 12.

(i) sections 2 and 3 of the Local Government (Emergency Provisions) Act 1916;

(ii) section 12(3) of the Local Government Superannuation Act 1937 or of the Local Government Superannuation (Scotland) Act 1937;

1939 c. 94.

(iii) section 3 of the Local Government Staffs (War Service) Act 1939; and

1949 c. 1v.

(b) section 51(4) (firemen employed in training institutions) of the London County Council (General Powers) Act 1949.

Section 10.**SCHEDULE 4****OVERSEAS GOVERNMENT PENSIONS (INDIA, PAKISTAN AND BURMA)**

1955 c. 22.

1. A pension which would be payable out of the revenues of India or Pakistan but for arrangements to which section 1 of the Pensions (India, Pakistan and Burma) Act 1955 applies.

1947 c. 30.

2. A pension payable out of the revenues of India or Pakistan to a person resident outside India, Pakistan, Burma and Aden in respect of any relevant services to the Crown, being either—

(a) service which ended before 15th August 1947; or

(b) service of which the termination was attributable to the passing of the Indian Independence Act 1947; or

(c) service which began at a time earlier than 15th August 1947 and was rendered by a person who in the opinion of the Secretary of State was at that time domiciled outside Asia.

The service relevant to this paragraph is service by virtue of which the pensioner has pension rights in relation to any of the funds listed below and any other service in a civil capacity ; it is immaterial whether the service was rendered by the pensioner or by another person, and " pension rights " includes, in relation to any person, all forms of right to, or eligibility for, the present or future payment of a pension to or in respect of that person.

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List of funds

- (i) The Bengal Military Fund and Orphans' Society ;
- (ii) The Bombay Military Fund ;
- (iii) The Madras Military Fund ;
- (iv) The Madras Medical Fund ;
- (v) The Indian Navy Fund ;
- (vi) The Indian Civil Service Family Pension Fund (Untransferred) ;
- (vii) The Superior Services (India) Family Pension Fund (Untransferred) ;
- (viii) The Indian Military Widows' and Orphans' Fund (Untransferred) ;
- (ix) The Indian Military Services Family Pension Fund (Untransferred) ;
- (x) The Bengal and Madras Service Family Pension Fund.

3. A derivative pension payable in respect of service in respect of which the principal pension would have fallen within any paragraph of this Schedule or within section 10(b) of this Act, and by virtue of which the pensioner has pension rights in relation to any of the funds listed below ; " pension rights " includes all forms of right to, or eligibility for, payment of a pension.

List of funds

- (i) The Indian Civil Service Family Pension Fund (Transferred) ;
- (ii) The Superior Services (India) Family Pension Fund (Transferred) ;
- (iii) The Indian Military Widows' and Orphans' Fund (Transferred) ;
- (iv) The Indian Military Service Family Pension Fund (Transferred).

4. A pension payable from the revenues of Burma to a person resident outside Burma, India, Pakistan and Aden and payable in respect of service in a civil capacity in Burma, being either—

- (a) service which ended before 4th January 1948 ; or
- (b) service of which the termination was attributable to the passing of the Burma Independence Act 1947 ; or
- (c) service which began at a time earlier than 4th January 1948 and was rendered by a person who in the opinion of the Secretary of State was at that time domiciled outside Asia.

1947 c. 3
(11 & 12 Geo. 6).

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5. A pension payable to or in respect of a member of the staff of the High Commissioner for India or the High Commissioner for Pakistan who at some time before he was transferred to the staff of the High Commissioner had been an officer or servant on the permanent establishment of the Secretary of State in Council of India.

6. A pension payable to or in respect of a person who was appointed to the staff of the Auditor of the Accounts of the Secretary of State for India in Council before the 1st April 1937.

7. A pension payable to or in respect of a European officer or European warrant officer of the Royal Indian Marine.

Section 11.

SCHEDULE 5

OTHER OVERSEAS GOVERNMENT PENSIONS

1. A pension in respect of service under the government of an overseas territory by a person who—

- (a) was at any time selected for initial appointment to service under the government of an overseas territory by a Minister of the Crown in the United Kingdom, or was recruited by the Crown Agents for Oversea Governments and Administrations ; or
- (b) was at any time recruited to a post for which, in the opinion of the Secretary of State, a normal channel of recruitment would have been either the Colonial Office or the Crown Agents for Oversea Governments and Administrations ; or
- (c) was at any time a member of Her Majesty's Overseas Civil Service or Her Majesty's Overseas Judiciary ; or
- (d) was at any time a designated officer under an Overseas Service Aid Scheme Agreement.

2. A pension in respect of service under the Sudan Government by a person who, in the opinion of the Secretary of State, entered the service of that Government in a pensionable capacity before 17th July 1954.

3. A pension in respect of service under the Egyptian Government by a person who, in the opinion of the Secretary of State, entered the service of that Government in a pensionable capacity before 15th March 1922, and who was a British subject when he entered such service.

4. A pension for the payment of which the Crown assumed responsibility under the Instrument of Cession of Sarawak dated 21st May 1946 or the North Borneo Transfer Agreement dated 26th June 1946.

5. A pension in respect of service in any of the armed forces of the Crown raised in an overseas territory, not being a pension payable under any warrant or other instrument made by virtue of Her Majesty's prerogative in respect of such forces.

6. A pension in respect of service in an auxiliary or special police force raised in an overseas territory, not being a pension payable to or in respect of a person who at the time of his retirement either— SCH. 5

(a) was engaged as mentioned in section 1(1) of the Police (Overseas Service) Act 1945 ; or 1945 c. 17
(9 & 10 Geo. 6).

(b) was engaged in service in respect of which the provisions of section 5 of the Overseas Service Act 1958 had effect ; 1958 c. 14.

nor a pension payable under any warrant or other instrument made by virtue of Her Majesty's prerogative in respect of such forces.

SCHEDULE 6

Section 13.

EMPLOYMENTS RELEVANT TO SECTION 13(2)

The following employments shall be included in section 13(2)(a) of this Act, namely,—

- (a) employment in the College of Domestic Arts of South Wales and Monmouthshire ;
- (b) employment by the Wheat Commission ;
- (c) employment (otherwise than as a constable) under the Commissioner of Police of the Metropolis or the Receiver for the metropolitan police district, being employment remunerated out of the Metropolitan Police Fund ;
- (d) service as a justices' clerk for the inner London area or other officer employed by the committee of magistrates for that area, other than service to which Regulation 2(1) of the Superannuation (Inner London Magistrates' Courts) Regulations 1965 applies ; S.I. 1965/537.
- (e) employment as an officer of a Regional Hospital Board, Board of Governors of a teaching hospital (or, in Scotland, Board of Management), Executive Council or other body constituted under the National Health Service Act 1946 or the National Health Service (Scotland) Act 1947 and any other employment as an officer engaged in health services provided under either of those Acts or otherwise (but not including health services provided by a local health authority or other local authority) ; 1946 c. 81.
1947 c. 27.
- (f) practice as a medical practitioner providing general medical services or as a dental practitioner providing general dental services (within the meaning of the National Health Service Act 1946 or the National Health Service (Scotland) Act 1947) ;
- (g) employment to which the Oversea Superannuation Scheme applied ;
- (h) any other employment specified for this purpose by regulations of the Minister for the Civil Service.

Section 18.

SCHEDULE 7

CONSEQUENTIAL REPEALS

Chapter	Short Title	Extent of Repeal
10 & 11 Geo. 5. c. 36.	The Pensions (Increase) Act 1920.	The whole Act.
14 & 15 Geo. 5. c. 32.	The Pensions (Increase) Act 1924.	The whole Act.
7 & 8 Geo. 6. c. 21.	The Pensions (Increase) Act 1944.	The whole Act.
10 & 11 Geo. 6. c. 7.	The Pensions (Increase) Act 1947.	The whole Act.
11 & 12 Geo. 6. c. 24.	The Police Pensions Act 1948.	In Schedule 1, paragraphs 15 and 20.
12, 13 & 14 Geo. 6. c. 44.	The Superannuation Act 1949.	Section 48(1) to (4). Section 62(3).
15 & 16 Geo. 6 & 1 Eliz. 2. c. 45.	The Pensions (Increase) Act 1952.	The whole Act.
1 & 2 Eliz. 2. c. 25.	The Local Government Superannuation Act 1953.	In Schedule 4, paragraph 4.
2 & 3 Eliz. 2. c. 25.	The Pensions (Increase) Act 1954.	The whole Act.
3 & 4 Eliz. 2. c. 22.	The Pensions (India, Pakistan and Burma) Act 1955.	Section 3(1), except the words preceding paragraph (a) and except paragraph (c). In Schedule 2, Parts I and II.
4 & 5 Eliz. 2. c. 39.	The Pensions (Increase) Act 1956.	The whole Act.
6 & 7 Eliz. 2. c. 64.	The Local Government and Miscellaneous Financial Provisions (Scotland) Act 1958.	In Schedule 4, paragraphs 5 and 19.
7 & 8 Eliz. 2. c. 50.	The Pensions (Increase) Act 1959.	The whole Act.
8 & 9 Eliz. 2. c. 9.	The Judicial Pensions Act 1959.	Section 7(1) and (2).
10 & 11 Eliz. 2. c. 30.	The Northern Ireland Act 1962.	Section 26(2).
11 & 12 Eliz. 2. c. 2.	The Pensions (Increase) Act 1962.	The whole Act.
1965 c. 11.	The Ministerial Salaries and Members' Pensions Act 1965.	Section 17.
1965 c. 58.	The Ministerial Salaries Consolidation Act 1965.	Section 3(3) from "but" onwards.
1965 c. 78.	The Pensions (Increase) Act 1965.	The whole Act.
1969 c. 7.	The Pensions (Increase) Act 1969.	The whole Act.

SCHEDULE 8

Section 18.

REPEALS OF SPENT PROVISIONS

PART I

OUTRIGHT REPEALS

Chapter	Short Title	Extent of Repeal
1 & 2 Geo. 6. c. 31.	The Scottish Land Court Act 1938.	Section 1(3)
11 & 12 Geo. 6. c. 26.	The Local Government Act 1948.	In section 140, in subsection (1), the words " the Central Valuation Committee, the Railway Assessment Authority ", and subsection (3)(f) with the preceding " and ".
11 & 12 Geo. 6. c. 33.	The Superannuation (Miscellaneous Provisions) Act 1948.	Section 13, so far as unrepealed.
8 & 9 Eliz. 2. c. 9.	The Judicial Pensions Act 1959.	Section 3(2). Section 7(3). Section 9(3).
1967 c. 73.	The National Insurance Act 1967.	In Schedule 7, paragraph 7.
1969 c. 44.	The National Insurance Act 1969.	Section 10(2).
1969 c. 63.	The Police Act 1969.	Section 5.
1970 c. 51.	The National Insurance (Old persons' and widows' pensions and attendance allowance) Act 1970.	Section 8(6).

PART II

REPEALS WITH SAVING FOR EXISTING PENSIONS

Chapter	Short Title	Extent of Repeal
8 Edw. 7. c. 38.	The Irish Universities Act 1908.	Section 16(8).
9 & 10 Geo. 5. c. 19.	The Local Government (Ireland) Act 1919.	Section 8.
10 & 11 Geo. 5. c. 67.	The Government of Ireland Act 1920.	Section 9(4). Sections 54 and 55. Sections 57 to 59. In section 68, subsection (1) from the words " or any Act " onwards and subsection (2). Schedule 8.
13 Geo. 5. Sess. 2. c. 2.	The Irish Free State (Consequential Provisions) Act 1922 (Session 2).	In Schedule 1, paragraph 7(2).

SCH. 8

Chapter	Short Title	Extent of Repeal
25 & 26 Geo. 5. c. 23.	The Superannuation Act 1935.	Section 18(2).
12, 13 & 14 Geo. 6. c. 44.	The Superannuation Act 1949.	Section 56.
10 & 11 Eliz. 2. c. 30.	The Northern Ireland Act 1962.	Section 26(1) and (3).
1965 c. 74.	The Superannuation Act 1965.	Section 101.

No repeal included in this Part of this Schedule shall affect the operation of any enactment (including an enactment of the Parliament of Northern Ireland) in relation to pensions for service ending before the passing of this Act.